

Court No. - 15

Case :- APPLICATION U/S 482 No. - 904 of 2022

Applicant :- Dileep Singh Bafila And Another

Opposite Party :- State Of U.P. Thru Prin Secy Deptt Of Home Civil Sectt And Other

Counsel for Applicant :- Shubham Tripathi

Counsel for Opposite Party :- G.A.,Aprajita Bansal

Hon'ble Suresh Kumar Gupta,J.

Issuance of notice to opposite party no.3 is hereby dispensed with.

Heard learned counsel for the petitioners, learned A.G.A. for the State and Ms. Aprajita Bansal, learned counsel for Madhyanchal Vidhut Vitran Nigam Limited/opposite party no.2.

By means of this petition, the petitioner has prayed to stay the effect, operation and implementation of the summoning order dated 19.02.2021 passed by the Court of Additional District Judge-4, Lucknow, under Sections 135, 139 and 141 of Electricity Act, 2003 in Sessions Case No.247/2021, arising out of Case Crime No.168/2020, Police Station- Gomti Nagar and to stay the proceedings of Sessions Case No.247/2021 arising out of Case Crime No.168/2020, Police Station- Gomti Nagar, under Sections 135, 139 and 141 of Electricity Act, 2003 against the applicants, with all consequences, during pendency of the present application.

Brief facts of the case emerges, as such, that opposite party no.3, who is the informant in the above mentioned case was posted as Junior Engineer, 33/11 K.V. Sub-station, Sector-1, Gomti Nagar Vistar at the time when the F.I.R. bearing case Crime No.0168/2020 under Sections 135, 139 and 141 of E.C. Act 2003, Police Station- Gomti Nagar Extension, District-Lucknow alleging that the petitioners have illegally installed 15 electricity poles in the compound of Bahujaan Nirbal Varg Sahkari Greh Nirman Samiti Ltd. Makdoompur, Sector-1, Gomti Nagar Vistar, Lucknow and have installed an AVS line over the aforesaid electricity poles without the prior permission of Madhyanchal Vidhyut Vitran Nigam Limited i.e. opposite party No.2, which has caused loss of Revenue to opposite party No.2. A certified and typed copy of F.I.R. bearing Case Crime No.0168/2020 filed by opposite party no.3 is annexed herewith as Annexure No.3 to this petition.

Learned counsel for the petitioners has submitted that petitioner no.1 is a reputed businessman, who is presently Chairman of

Himalayan Sahkari Awas Samiti Ltd. Lucknow. The instant dispute has arisen due to installation of 15 electricity poles in the compound of Bahujan Nirbal Varg Sahkari Greh Nirman Samiti Ltd, Makdoompur, Sector-1, Gomti Nagar Vistar, Lucknow and thereafter installing an AVC line over the aforesaid electricity poles without prior permission of opposite party no.2.

Learned counsel for the petitioners has further submitted that opposite party no.2 is entitled for payment of supervision charges under Clause 4.6 (e) (ii) of the U.P. Electricity Supply Code 2005, if the material is not purchased from the opposite party no.2. For the sake of perusal and reference of this Hon'ble Court Clause 4.6 (e) (ii) of the U.P. Electricity Supply Code 2005 is reproduced herein under :

4.5 (e) (ii) "If the work is to be done by the developer/applicant/development authority, the Licensee shall charge supervision charges (on the estimated labour cost, cost of material, material handling and storage/inventory, but excluding the system loading charges and the establishment costs), as a percentage of the normative estimates, specified in cost data book, which shall be deposited with the licensee before work begins. Notwithstanding the Amended provision coming into effect from the date of notification, the supervision charge on cost of material charged earlier in the estimates before this amendment shall not be refunded back."

Thus, considering the entire allegations made in the F.I.R. that no prior permission was taken by Developer Society from the opposite party No.2 before starting installation of the electricity line and due to non-payment of supervision charges, so no cognizable offence is made out against the petitioners.

Learned counsel for the petitioners has submitted that subsequently the supervision charges as defined under Section 4.6 (e) (ii) of the U.P. Electricity Supply Code, 2005 for installation of Electricity Poles and AVC line over the poles for electrification of colony as per the U.P. Electricity Supply Code 2005 has been asserted by the opposite party no.2. The supervision charges amount as demanded by opposite party no.2 has been paid by the Bahujan Nirbal Varg Sahkari Greh Nirman Samiti Ltd. through its Secretary Shri Lakhan Singh Balyani. As such, there is no actual revenue loss caused to the opposite party no.2. A copy of payment receipt is annexed herewith as Annexure No.6 to this petition.

Learned counsel for the petitioners has further submitted that the alleged dispute mentioned herein above between the

opposite party no.2 and Bahujan Nirbal Varg Sahkari Greh Nirman Samiti Ltd. came to an end after the payment of supervision charges as per the U.P. Electricity Supply Code 2005 for installation of Electricity Poles and AVC line by Bahujan Nirbal Varg Sahkari Greh Nirman Samiti Ltd. to the opposite party no.2. Opposite party no.3 vide its letter dated 22.03.2021 registered for closure of F.I.R. bearing Case Crime No.0168/2020 under Sections 135, 139 and 141 of the Electricity Act 2003 at Police Station Gomti Nagar Extension, District Lucknow.

Learned counsel for opposite parties no.2 and 3 has clearly stated that no grievance is left and opposite parties no.2 and 3 has no objection and does not want to pursue the case any further. A copy of letter dated 22.03.2021 is annexed as Annexure No.7 to this effect.

In view of the above facts and circumstances of the case, since the provision of above Electricity Act is compoundable and all the supervision charges has been paid by the petitioner and Counsel for opposite parties no.2 and 3 Ms.Aparajta Bansal has also agreed that no fruitful purpose would be served in keeping the petition pending before the trial court. For the reasons aforesaid and considering the fact that offences are compoundable and all the electricity dues have been paid by the petitioners, the entire proceedings, which are pending before the trial court are hereby quashed

In view of the above, the petition under 482 Cr.P.C. is hereby **allowed.**

A copy of this order be communicated to learned trial court for necessary compliance.

Order Date :- 4.3.2022

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